

In re S. Bradley Mell

No. 26-16834-EJO (Bankr. D.N.J.)

Hearing: July 16, 2026

Appendix to Opposition to Motion to Dismiss

Volume IIIb — Trust Summary Judgment Record (Part 2)

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Tab C-5

Whalen Response in Support of Summary Judgment — March 4,
2026

Tab C-6

SBM Trust — Order of Dismissal, March 18, 2026

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B.B.,
Plaintiff,
v.

S. BRADLEY MELL; KIMBERLY
RUGGLES MELL individually and
on behalf of her minor son
W.M.; W.H. MELL ASSOCIATES,
INC.; GULFSTREAM CM, LLC;
GULFSTREAM GM, LLC; AERO CARE
SERVICES, LLC; ELIZA MELL;
EMILY MELL; STEVEN BRADLEY
MELL 2012 FAMILY TRUST;
KIMBERLY MELL 2012 FAMILY
TRUST; and MOUNTAINSIDE
SECURITIES, LLC,

Defendants.

SUPERIOR COURT OF NEW JERSEY
ESSEX COUNTY - LAW DIVISION
DOCKET NO.: ESX-L-7200-19

Civil Action

STIPULATION OF DISMISSAL

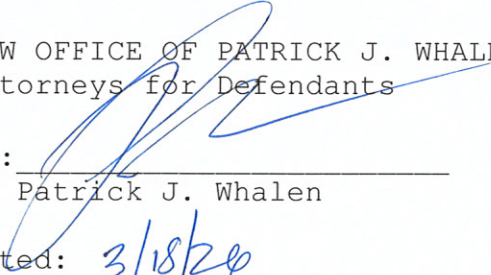
The matter in difference in the above-entitled action having been adjusted by and between the parties, it is hereby stipulated and agreed that the same be and it is hereby dismissed as to Defendants, Steven Bradley Mell 2012 Family Trust, Kimberly Ruggles Mell solely in her capacity as Trustee of the Steven Bradley Mell 2012 Family Trust, and as guardian of W.M., Eliza Mell, Emily Mell, and William Mell, only, with prejudice and without costs.

NAGEL RICE, LLP
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By: Michael J. Paragano
MICHAEL J. PARAGANO

Dated: March 17, 2026

LAW OFFICE OF PATRICK J. WHALEN
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By: 
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Dated: 3/18/26

Tab C-7

Kimberly Ruggles Mell — Order of Dismissal, March 16, 2026

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B.B.,
Plaintiff,
v.

S. BRADLEY MELL; KIMBERLY
RUGGLES MELL individually and
on behalf of her minor son
W.M.; W.H. MELL ASSOCIATES,
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SERVICES, LLC; ELIZA MELL;
EMILY MELL; STEVEN BRADLEY
MELL 2012 FAMILY TRUST;
KIMBERLY MELL 2012 FAMILY
TRUST; and MOUNTAINSIDE
SECURITIES, LLC,

Defendants.

SUPERIOR COURT OF NEW JERSEY
ESSEX COUNTY - LAW DIVISION
DOCKET NO.: ESX-L-7200-19

Civil Action

STIPULATION OF DISMISSAL

The matter in difference in the above-entitled action having been adjusted by and between the parties, it is hereby stipulated and agreed that the same be and it is hereby dismissed as to Defendant, Kimberley Mell 2012 Family Trust, only, with prejudice and without costs.

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Dated: March 17, 2026

Tab C-8

Summary Judgment Brief

Steven Bradley Mell
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Far Hills, NJ 07931
Defendant & Third-Party Plaintiff
Pro Se

B.B.,	:	SUPERIOR COURT OF NEW JERSEY
	:	LAW DIVISION: ESSEX COUNTY
	:	
Plaintiff,	:	DOCKET NO. ESX-L-7200-19
vs.	:	
S. BRADLEY MELL; KIMBERLY	:	<u>Civil Action</u>
RUGGLES MELL; AERO CARE	:	
SERVICES, L.L.C.; CM, L.L.C.;	:	
KRM INVESTMENTS, L.L.C.;	:	
EMILY MELL; ELIZA MELL;	:	
W.M.; STEVEN	:	
BRADLEY MELL 2012 FAMILY	:	
TRUST; KIMBERLY RUGGLES	:	
MELL 2012 FAMILY TRUST;	:	
and MOUNTAINSIDE SECURITIES, LLC,	:	
	:	
Defendants.	:	
STEVEN BRADLEY MELL, ET AL.	:	
	:	
Third-Party Plaintiff,	:	
	:	
vs.	:	
	:	
D.D. and E.E.,	:	
	:	
Third-Party Defendants.	:	

**STEVEN BRADLEY MELL'S *PRO SE* BRIEF
IN SUPPORT OF HIS MOTION FOR SUMMARY JUDGMENT**

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PRELIMINARY STATEMENT

There is a universal, almost primal standard of conduct expected of parents when they discover another parent involved is in a sexual relationship with their teenage daughter. A reasonable parent, upon discovering that a man old enough to be her father had engaged in sexual relations with their eldest child would have unleashed a scorched-earth campaign to end life as the man had known it. They would have called the police immediately. They would have contacted his wife. They would have severed every social tie, retained aggressive counsel, and stood on his front lawn screaming until the neighbors called the authorities to intervene. A reasonable parent operates on a singular instinct: the absolute protection of their young, regardless of the social cost. The Third-Party Defendants, D.D. and E.E. (“Parents”), did none of these things. They are not reasonable parents. They are driven by greed, by social elitism, and without a care in the world for their children’s growth and maturation. The evidence in this case unearths a terrible conclusion. D.D. and E.E., who are hiding behind the anonymity their daughter requires because of their own misconduct, are child abusers. The undisputed record reveals a reaction so contrary to human instinct that it creates a presumption of complicity. Upon discovering the illicit relationship with their eldest daughter, the Parents did not go to the police; they went to the Essex Hunt Club to console the man who admitted to the tryst. Following that meeting, the red flags regarding their younger daughter, B.B., were not merely visible; they were neon. The Parents utilized private aircraft, received financial compensation, and benefited with social enhancements. If that weren’t enough, Parents, *inter alia*, agreed to allow Mell to pay for and facilitate B.B.’s flight lessons. They accepted cash deposits into their personal accounts. They allowed B.B. unsupervised access to Mell’s aircraft. Yet, even assuming *arguendo* that the Parents were somehow blind to these financial sirens, their willful blindness became impossible to maintain in October 2017. When B.B.’s friends discovered illicit text messages and the Mother was confronted with the undeniable reality of the relationship, the Parents *still* did not contact authorities. They sat on the evidence for two more months. It was only in December 2017, when the school was notified by B.B.’s friend and the secret was forced

into the public domain, that the Parents finally feigned outrage and devastation. This Motion for Summary Judgment is not an attempt by Mr. Mell to evade consequences. He has already served a federal prison sentence and remains under strict federal and state supervision. He has paid a heavy price. Rather, this Motion seeks to correct a grotesque imbalance in the ledger of justice. To date, Mr. Mell has stood alone in the penalty box for a tragedy that required three participants: the adult male, and the two guardians who unlocked the door and ushered him in. Granting summary judgment here provides the only result that fully vindicates the Plaintiff's rights: Joint and Several Liability. It acknowledges that while Mr. Mell engaged in the relationship, the Parents built the stage. The record—cemented by the Parents' own text messages and financial statements—proves they engaged in a *quid pro quo*. They knew the nature of Mr. Mell's interest, yet they knowingly served B.B. up to him on a silver platter in exchange for private flights to Colby College, \$50,000 in brokerage account infusions, real estate commissions, and access to the cockpit of a luxurious King Air. The Parents' "scorched earth" campaign began only after the school's involvement made the situation official, and even then, their priority was financial leverage, not justice. During the critical window in December 2017, the Parents delayed a police interview for seventeen days. They used that time to hire counsel and demand a \$10 million settlement from Mr. Mell. While negotiating this payout, the Mother enforced a strict code of silence to control the narrative, explicitly instructing B.B. to "not say anything about the relationship to anyone" and to "delete Snapchat." These were not the actions of parents cooperating with law enforcement; they were the actions of co-conspirators mitigating damage to preserve a payout. This course of conduct establishes liability far beyond simple oversight. The Third-Party Complaint asserts causes of action for **Gross Negligence** and **Acquiescence under the Child Sexual Abuse Act**, and the record supports both. By prioritizing their lifestyle over their daughter's safety, the Parents engaged in "willful and wanton" misconduct that pierces any shield of parental immunity. They did not merely fail to protect B.B.; they knowingly acquiesced to the risk, effectively partnering with Mr. Mell in the **facilitation of the relationship**. The Parents cannot claim they were unaware. They cannot claim they were powerless. The facts establish that they made a market decision to

trade their teenage daughter's safety for the perks of Mr. Mell's wealth. As such, they are liable for contribution and indemnification as a matter of law. Summary Judgment must be entered to ensure that the liability for this tragedy is shared by every adult who made it possible.

PROCEDURAL HISTORY

This protracted litigation commenced over six years ago on October 2, 2019, when Plaintiff B.B. filed the initial Complaint alleging assault and battery [Dkt. 001, 10/02/2019]. The matter has since languished through an exhaustive pretrial phase, characterized by significant delays and thirteen separate extensions of the discovery end date [Dkt. Civil Case Summary, p. 1]. Throughout this extended period, the Court has actively managed the docket, issuing numerous Case Management Orders to address the complex discovery disputes that have arisen [e.g., Dkt. 040, 01/27/2020; Dkt. 875, 12/23/2025]. Following years of discovery, Defendant and Third-Party Plaintiff Steven Bradley Mell ("Mell") sought leave to implead the Plaintiff's parents based on their own liability for the alleged harms. The Court granted this leave on August 25, 2023 [Dkt. 583, 08/25/2023]. Three days later, on August 28, 2023, Mell filed the Third-Party Complaint against Third-Party Defendants D.D. and E.E. (the "Parents"), asserting claims for contribution and indemnification arising from their specific conduct regarding their daughter, B.B. [Dkt. 590, 08/28/2023]. The Parents subsequently made their appearance and filed Answers to the Third-Party Complaint on October 19, 2023 [Dkt. 616, 10/19/2023]. Despite the initiation of the primary action in 2019, the matter remains unresolved and is currently scheduled for trial on April 20, 2026 [Dkt. Civil Case Summary, p. 1]. Having now developed a substantial evidentiary record confirming the Parents' liability, Mell submits the instant Motion for Summary Judgment to adjudicate these third-party claims as a matter of law.

STATEMENT OF FACTS

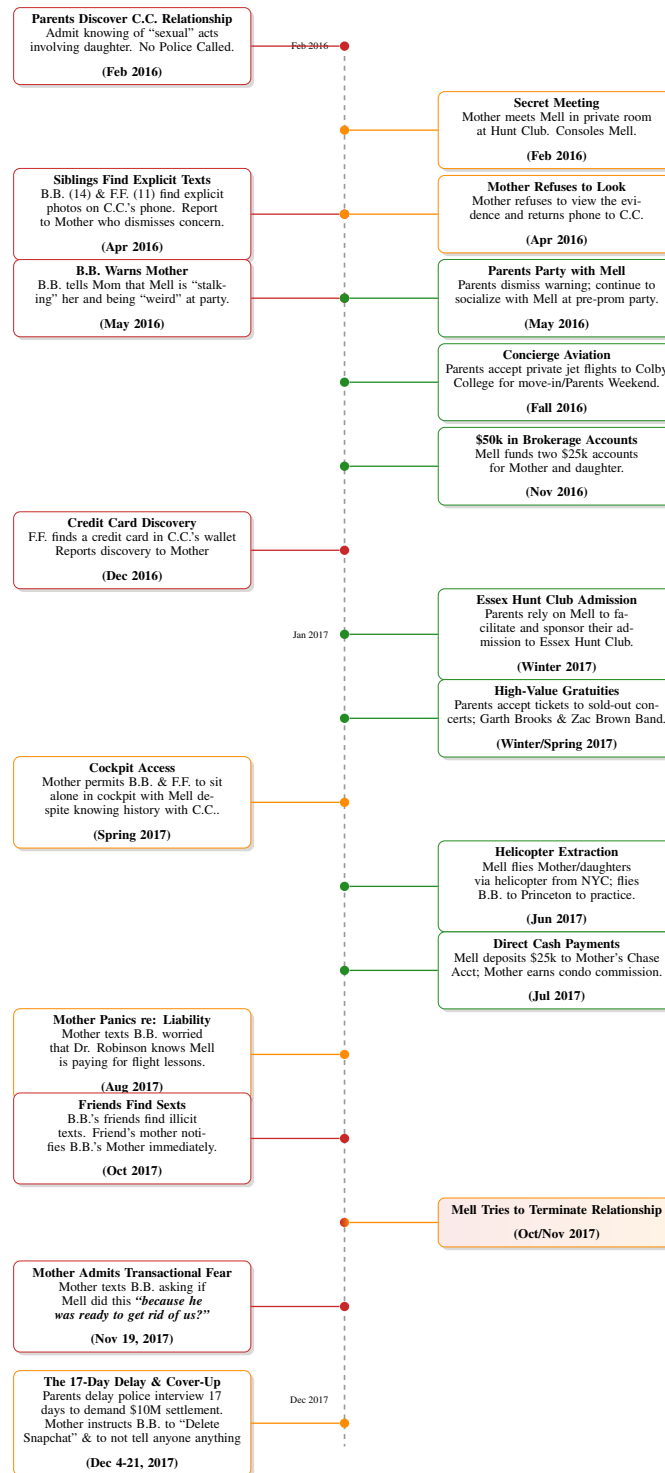


Figure 1: Parental Knowledge vs. Parental Benefit

I. The Acquisition of the Asset (2015 – February 2016)

While residing in Whitehouse Station with their three daughters, Third-Party Defendants D.D. (“Mother”) and E.E. (“Father”) (collectively “Parents”) utilized their children to transform their lives from suburban mediocrity to a lifestyle of lavish appearance [Statement of Material Facts, ¶3, hereinafter referred to as “SUMF”]. By early 2016, the Parents had identified the vehicle for this transformation: the Defendant, Steven Bradley Mell (“Mell”) [SUMF ¶1]. The foundation of this new “business” arrangement was laid in February 2016, when the Parents discovered that Mell was involved in an illicit relationship with their high-school-aged daughter, C.C. [SUMF ¶4]. The Parents were under no illusions regarding the nature of this contact; they possessed direct knowledge that the relationship was “sexual in nature” and involved “inappropriate things” such as kissing [SUMF ¶6-7]. They further knew that their daughter had entered into this dynamic of her own volition [SUMF ¶5]. At this critical crossroads, a reasonable parent acts as a protector; these Parents, however, acted more as brokers calculating market conditions. Despite possessing explosive knowledge of sexual contact involving their minor child, they made a calculated decision to bypass the authorities entirely, refusing to contact the police or seek legal protection [SUMF ¶8]. Instead, Mother arranged a private meeting with Mell at the Essex Hunt Club [SUMF ¶9]. In the seclusion of a “private room,” the Mother did not threaten Mell with legal action; she “consoled” the adult male, accepted his apology, and agreed to keep the affair quiet [SUMF ¶10]. This was not a settlement of a grievance; it was the negotiation of a price. By trading their silence for Mell’s gratitude, the Parents established a precedent that they would later replicate with their younger daughter: the safety of their children was a tradable commodity.

II. Cultivating the Market (April 2016 – May 2016)

Having established the ground rules of their silence, the Parents engaged in a campaign of aggressive willful blindness to protect their investment. This commitment to the relationship was tested just two months later, in April 2016, when their younger daughters, B.B. and F.F., discovered sexually explicit messages and photographs involving Mell on C.C.’s cell phone [SUMF ¶12]. Ter-

rified, the siblings immediately brought this evidence to Mother [SUMF ¶13]. Mother's response was not merely negligent; it was complicit. Rather than seizing the device or alerting the authorities she had already bypassed once before, Mother refused to even look at the evidence [SUMF ¶14]. She immediately returned the phone to C.C., effectively handing the communication tool back to her daughter to ensure the family's connection to Mell remained undisturbed [SUMF ¶14]. The Parents' determination to ignore reality reached its zenith in May 2016 at a pre-prom party. By this time, the Parents were fully aware of the prior sexual relationship with C.C. and the existence of explicit photos found weeks prior [SUMF ¶11, 17]. Yet, when B.B. approached Mother at the party and explicitly warned her that Mell was "following [her] around" and "stalking" her, the Parents refused to intervene [SUMF ¶15]. They dismissed their daughter's direct plea for protection and continued to socialize happily with Mell and his family, signaling that his presence in their social circle was more valuable than their daughter's peace of mind [SUMF ¶16].

III. The Payoff: Monetizing Access (2016 – 2017)

Having successfully silenced the warnings and buried the evidence, the Parents began to reap the dividends of their "friendship." Over the next year, they allowed their relationship with Mell to morph into a lucrative patronage where access to their daughters was exchanged for extreme financial benefits [SUMF ¶18]. The Parents utilized Mell's private aviation assets as a personal "concierge service" [SUMF ¶19]. They accepted private jet flights for the whole family to travel to Maine for college move-ins and "parents' weekend" [SUMF ¶19(a)-(b)]. They accepted executive helicopter extractions from New York City and private flights for B.B. to Princeton [SUMF ¶19(c)-(d)]. In perhaps the most chilling example of their transactional mindset, Mother permitted Mell to take B.B. and F.F. into the cockpit of his private plane to sit alone with him, literally locking her daughters in a confined space with the adult male they knew to be sexually involved with their eldest child, all for the thrill of the aviation lifestyle [SUMF ¶19(e)]. The compensation for this access was not limited to travel; it was direct and cash-based. Mell funded two separate brokerage accounts, one for Mother and one for C.C., with \$25,000 each [SUMF ¶22]. The Parents relied

on Mell to facilitate and sponsor their admission into the exclusive Essex Hunt Club, cementing the social status they craved [SUMF ¶23]. They accepted high-value gratuities, including sold-out tickets to Zac Brown Band & Garth Brooks concerts [SUMF ¶24]. Mother even monetized the relationship professionally, serving as the listing agent for Mell’s condominium to secure a commission split [SUMF ¶25]. The sale of the daughter culminated in the summer of 2017. According to B.B., her illicit sexual relationship with Mell began in mid-June 2017 [SUMF ¶20].

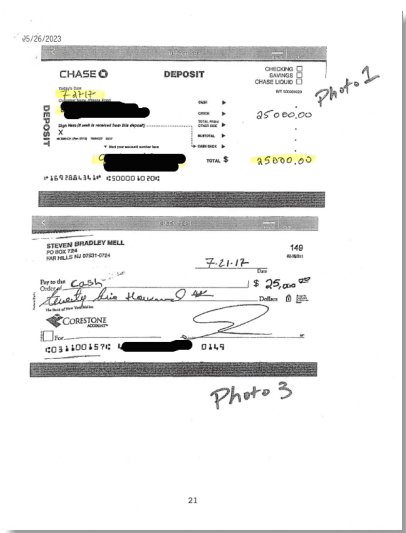


Figure 22: \$25,000 Deposit into Mother’s Personal Account,
July 2017

On July 27, 2017—in close proximity to B.B.’s first alleged intercourse encounter with Mell—he transferred \$25,000 directly into Mother’s personal Chase bank account [SUMF ¶21]. This was not a gift; the timing suggests it was a payment. Despite knowing Mell’s history with C.C., Mother expressly permitted Mell to take B.B. to the Somerset Airport to personally fund and facilitate her flying lessons, granting him unsupervised access to her child in exchange for the tuition payments [SUMF ¶26].

IV. Protecting the Revenue Stream (August 2017 – November 2017)

As the relationship progressed, the Parents’ anxiety was focused entirely on the preservation of the asset. In August 2017, Mother learned that B.B. had discussed her flying lessons with a therapist [SUMF ¶27]. Mother did not ask B.B. if she was safe; instead, she sent frantic text messages asking if B.B. had told the doctor “who was paying” [SUMF ¶28]. Mother was fixated on the “reporting” requirements, terrified that the therapist would expose the fact that Mell was

the one paying for the lessons [SUMF ¶29]. When B.B. expressed confusion, Mother dismissed her, concerned only that the doctor “thought it was fine” so the payments could continue [SUMF ¶30]. The Parents’ claim that they only “discovered” the relationship on December 4, 2017, is a transparent fabrication [SUMF ¶31]. The record proves the Parents knew the truth months earlier but actively concealed it. In October 2017, B.B.’s friends, S.S. and K.M., found illicit text messages on B.B.’s phone [SUMF ¶31]. S.S. immediately told her own mother, K.S., about the discovery [SUMF ¶32]. In turn, K.S. immediately contacted D.D. (Mother) to inform her that her daughter was involved in an illicit relationship [SUMF ¶32]. Despite this direct notification from another parent in October, Mother did absolutely nothing, choosing to bury the secret rather than protect her child [SUMF ¶33]. The wall of silence only crumbled because high school teenagers possessed a basic understanding of right and wrong that the Parents—blinded by greed—had long since abandoned. On December 1, 2017, B.B.’s friend K.M. finally broke down and reported the relationship to a mandatory reporter, her Art Teacher at Gill St. Bernards [SUMF ¶34]. It was only after this report that school administrators contacted the Parents on December 4, 2017 [SUMF ¶35]. This timeline proves indisputably that Mother and Father were acutely aware of the relationship months prior to police involvement but concealed it to keep the benefits flowing [SUMF ¶36]. The Parents’ true motivation—the fear of losing their patron—was laid bare in November 2017. When Mell attempted to withdraw from the relationship, Mother did not celebrate the end of the illicit contact. Instead, she texted B.B. on November 19, 2017, asking if Mell was ending it “because he was ready to get rid of **us**?” [SUMF ¶39-40]. This single text message exposes the grotesque reality: Mother viewed herself and her daughter as a package deal, a collective “us” that was being discarded. B.B. and Mother even exchanged texts lamenting the loss of the “friendship” and wishing they could go back to “old times,” mourning the loss of the lifestyle rather than the relationship itself [SUMF ¶41-43].

V. The Extortion and Cover-Up (December 2017)

When the Gill St. Bernard’s School notified the Parents on December 4, 2017, that police were involved, the Parents immediately pivoted to damage control—not to assist the investigation, but to secure a final payout [SUMF ¶44]. Despite investigators requesting an interview, the Parents hid B.B. from law enforcement for a critical 17-day window [SUMF ¶45]. They used this delay to retain counsel for the specific purpose of demanding a financial settlement from Mell, quantifying their alleged silence at \$10 million [SUMF ¶48-49]. It was only after these settlement demands were rejected that they retained new counsel to pursue criminal complaints, submit for forensic interviews, and speaking with prosecutors as a tool to force Mell to “respond very quickly and more favorably” [SUMF ¶50-51]. During this 17-day delay, Mother actively obstructed the pursuit of justice to protect the family’s exposure. She texted B.B. explicit instructions to “delete Snapchat,” an order B.B. followed, which resulted in the spoliation of the digital record and the destruction of physical proof [SUMF ¶52-53]. Simultaneously, Mother enforced a mafia-like code of silence, instructing B.B. to “*not admit*” anything to anyone and to “don’t discuss any details,” ensuring that the narrative remained under the Parents’ strict control while they negotiated for their settlement [SUMF ¶54]. The undisputed facts confirm that from 2016 through the end of 2017, the Parents were not victims of deception; they were active, willing participants in the monetization of their own children [SUMF ¶55].

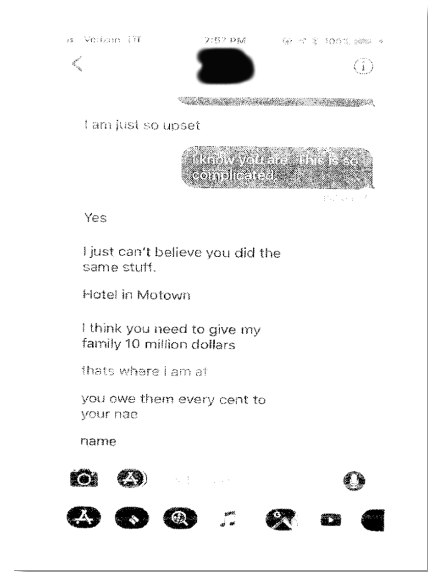


Figure 3: \$10M Demand Text

LEGAL STANDARDS

A. THE SUMMARY JUDGMENT STANDARD

Summary judgment is the procedural mechanism designed to “provide a prompt, businesslike and inexpensive method of disposing of any cause which a discriminating search of the merits in the pleadings, depositions and admissions on file... discloses as not to involve any genuine issue of material fact.” [*Brill v. Guardian Life Ins. Co. of Am.*, 142 N.J. 520, 530 (1995)]. The mere existence of a factual dispute is insufficient to defeat the motion. The inquiry is whether the evidence presents a sufficient disagreement to require submission to a jury or whether it is “so one-sided that one party must prevail as a matter of law.” [*Brill*, 142 N.J. at 536 (citing *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242 (1986))]. Where the non-moving party’s evidence is merely colorable, or is not significantly probative, summary judgment should be granted. In opposing summary judgment, a party cannot create a genuine issue of material fact by submitting testimony that contradicts their own prior statements or objective documentary evidence. The Supreme Court of New Jersey has explicitly adopted the “sham affidavit” doctrine, holding that a trial court may reject an affidavit or certification that “patently contradicts” earlier deposition testimony or incontrovertible record evidence. [*Shelcusky v. Garjulio*, 172 N.J. 185, 201 (2002)]. Self-serving assertions of memory loss or “feigned ignorance” are insufficient to override objective proofs such as bank records, flight logs, or electronic communications. When the record is contradicted only by a party’s convenient failure to recall, no genuine issue of material fact exists. [*Shelcusky*, 172 N.J. at 201-02].

B. STATUTORY LIABILITY UNDER THE CHILD SEXUAL ABUSE ACT

The New Jersey Legislature enacted the Child Sexual Abuse Act (“CSAA”) to provide a civil remedy that is “separate and distinct” from common law claims. The statute explicitly extends liability beyond the active perpetrator to those who control the child’s environment and either permit or ignore the abuse. N.J.S.A. 2A:61B-1(a)(1) mandates:

A parent, resource family parent, guardian or other person standing *in loco parentis*... who knowingly permits or acquiesces in sexual abuse by any other person also

commits sexual abuse.” [N.J.S.A. 2A:61B-1(a)(1)].

This statutory provision reflects a legislative determination that the “passive” enabler is often as destructive as the active abuser. To understand the full scope of this liability, one must examine the controlling precedents that define the non-delegable duties of those who stand *in loco parentis*, the duty to warn, and the strict liability nature of the statute.

1. Hardwicke v. American Boychoir School: The Affirmative Duty of Supervision

In *Hardwicke v. American Boychoir School*, 188 N.J. 69 (2006), the Supreme Court of New Jersey engaged in a comprehensive analysis of the duties owed by those entrusted with the care of children. The Court was tasked with determining whether the CSAA’s liability extended to an institution that stood *in loco parentis* but did not actively participate in the sexual acts. The Court answered unequivocally in the affirmative, establishing a standard of “knowing inaction” that applies with equal force to biological parents. The Court began by defining the “bundle of rights and responsibilities” inherent in the parent-child relationship. The Court held:

Standing *in loco parentis* to a child provides the holder of that status with the responsibility to maintain, rear and educate the child, as well as the duties of supervision, care and rehabilitation. [*Hardwicke*, 188 N.J. at 85].

The Court rejected the argument that liability requires active participation. Instead, it focused on the unique position of authority held by the parent or guardian. The Court held that the CSAA “imposes liability on those who are in the best position to know of the abuse and stop it.” [*Id.* at 85]. The Court reasoned that the Legislature intended to “protect children from victimization” and that this protection is hollow if it does not reach the adults who see the abuse occurring and choose to do nothing. [*Id.*]. Under the *Hardwicke* standard, a parent who possesses knowledge of a risk and fails to exercise their “duties of supervision” has “acquiesced” to the abuse as a matter of law.

2. J.S. v. R.T.H.: The Duty to Warn and “Particularized Foreseeability”

While *Hardwicke* establishes the duty to supervise, the Supreme Court’s decision in *J.S. v. R.T.H.*, 155 N.J. 330 (1998), establishes the specific legal obligation to take preventive action when one possesses knowledge of a predator’s tendencies. This case is the seminal authority on the “duty to warn” in the context of sexual abuse. In *J.S.*, the Court addressed whether a wife could be held liable for failing to warn her neighbors that her husband was a sexual predator. The wife argued that, as she did not commit the abuse, she had no duty to speak. The Supreme Court unanimously rejected this argument, establishing a standard of “particularized foreseeability.” The Court held that when a person has “actual knowledge or special reason to know” that a third party poses a risk of sexual abuse, a duty to take reasonable steps to prevent the harm arises. [*J.S.*, 155 N.J. at 352]. The Court reasoned that silence in the face of known danger is not neutrality; it is negligence. The Court explained:

[W]hen a spouse has actual knowledge or special reason to know of the likelihood of his or her spouse engaging in sexually abusive behavior against a particular person or distinct class of persons, the spouse has a duty of care to take reasonable steps to prevent or warn of the harm. [*Id.* at 352].

The *J.S.* decision clarifies that this duty is triggered by knowledge of “deviant proclivities” or prior misconduct. [*Id.* at 343]. Once a defendant possesses this “particularized knowledge,” they cannot passively observe the situation. The law imposes an affirmative obligation to intervene, warn potential victims (or their guardians), or contact law enforcement. If the Court in *J.S.* imposed this heavy burden on a spouse—who has no legal authority over a neighbor’s child—then *a fortiori*, the duty applies with even greater force to parents, who possess both the knowledge of the danger and the absolute authority to protect their own child.

3. The Statutory Mandate of Strict Liability: Mens Rea Is Limited to Knowledge, Precluding Defenses of Benign Intent

Finally, the Court must recognize that the CSAA creates a strict liability framework for the “passive” abuser that mirrors the liability of the active perpetrator. The statute does not require the Plaintiff to prove that the Parents acted with malice, nor does it require proof that they specifically intended for their child to suffer psychological injury. The Legislature purposefully limited the *mens rea* requirement to the element of “knowing permission or acquiescence.” [N.J.S.A. 2A:61B-1(a)(1)]. This statutory design establishes a bright-line rule: once a parent possesses knowledge of the abusive conduct (or the risk thereof) and fails to intervene, liability attaches strictly. The parent’s subjective motivation for permitting the relationship—whether it be financial greed, social climbing, or a misguided belief that the relationship was “beneficial”—is legally irrelevant to the determination of liability. As the Supreme Court affirmed in *Hardwicke*, the statute is “remedial” and must be construed broadly to “protect children from victimization.” [*Hardwicke*, 188 N.J. at 85]. Consequently, a parent cannot evade liability by arguing they did not “intend” the harm; if they knowingly permitted the access that caused the harm, they are liable for the abuse as a matter of law.

C. THE DOCTRINE OF PARENTAL IMMUNITY DOES NOT INSULATE TORTFEASORS FROM LIABILITY FOR WILLFUL AND WANTON MISCONDUCT OR STATUTORY VIOLATIONS OF THE CHILD SEXUAL ABUSE ACT

While New Jersey common law has historically recognized a limited immunity for parents regarding simple negligence in the exercise of “customary child care,” that immunity is neither absolute nor impenetrable. It was never intended, and has never been interpreted, to shield a parent who has abdicated their fundamental duty to protect their child from known dangers. Where a parent’s conduct transcends simple inadvertence and rises to the level of willful or wanton misconduct, or where a parent violates the specific statutory duties imposed by the Child Sexual Abuse Act (“CSAA”), the doctrine of parental immunity is abrogated as a matter of law.

1. The Judicial Abrogation of Immunity for Willful and Wanton Misconduct

The Supreme Court of New Jersey, in the seminal decision of *Foldi v. Jeffries*, fundamentally restructured the doctrine of parental immunity to prevent it from becoming a shield for reckless endangerment. [93 N.J. 533 (1983)]. The Court explicitly held that “while the doctrine of parental immunity is a bar to a suit alleging negligent supervision, it does not protect a parent who has willfully or wantonly failed to watch over his or her child.” [*Id.* at 547]. The *Foldi* Court reasoned that the policy justifications for immunity—the preservation of domestic tranquility and parental autonomy—cease to exist when a parent’s conduct evinces a reckless disregard for the child’s safety. The Court established that willful and wanton misconduct is an “intermediary position between simple negligence and the intentional infliction of harm.” [*Id.* at 549]. Crucially, to survive a motion for summary judgment on the issue of immunity, a plaintiff need not prove that the parent possessed a specific intent to injure the child. Rather, liability attaches where the parent, with knowledge of existing conditions, creates or permits a situation of danger with “reckless indifference to the consequences.” [*Id.* (citing *McLaughlin v. Rova Farms, Inc.*, 56 N.J. 288, 305 (1970))]. The Supreme Court further refined this standard in *G.S. v. Department of Human Services*, clarifying the mental state required to pierce immunity in the context of child supervision. [157 N.J. 161 (1999)]. The *G.S.* Court held that the distinction between negligence and willful misconduct lies in the actor’s state of mind regarding the *risk*, not the *result*. “So long as the act or omission that causes injury is done intentionally, whether the actor actually recognizes the highly dangerous character of her conduct is irrelevant; knowledge will be imputed to the actor.” [*Id.* at 178]. Therefore, the legal standard requires only that the parent knew, or had reason to know, of circumstances that would alert a reasonable person to the highly dangerous character of their conduct. If a parent intentionally acts, or intentionally fails to act, in the face of such a known risk, the law presumes that the parent intended the natural consequences of that risk. [*Id.* at 178-79]. Under *Foldi* and *G.S.*, such conduct is “removed from the protective boundary of immunity” and subjects the parent to civil liability in the same manner as any third-party tortfeasor. [*Foldi*, 93 N.J. at 549].

2. The Legislative Abrogation of Immunity Under the Child Sexual Abuse Act

Independent of the common law exception for willful and wanton misconduct, the New Jersey Legislature has statutorily abrogated parental immunity in cases involving sexual abuse. The Child Sexual Abuse Act (“CSAA”), [N.J.S.A. 2A:61B-1 *et seq.*], creates a civil cause of action that expressly supersedes common law defenses. The CSAA defines “sexual abuse” not only as the physical act of the perpetrator but also as the conduct of a parent who facilitates or allows the abuse to occur. N.J.S.A. 2A:61B-1(a)(1) provides that a “parent” who “knowingly permits or acquiesces in sexual abuse by any other person” is liable as an abuser. The Legislature’s specific inclusion of the word “parent” in the statutory definition is dispositive. It is a well-settled canon of statutory construction that the Legislature is presumed to know the common law and to have altered it where the statutory text clearly conflicts. [See *Velazquez v. Jiminez*, 172 N.J. 240, 257 (2002)]. If the common law doctrine of parental immunity were applied to a CSAA claim, it would render the statutory text of N.J.S.A. 2A:61B-1(a)(1)—which explicitly creates liability for parents—a nullity. A court cannot interpret a statute in a manner that renders its specific provisions superfluous or meaningless. [See *State v. Reynolds*, 124 N.J. 559, 564 (1991)]. By codifying the liability of a parent who “knowingly permits” abuse, the Legislature has carved out a statutory exception to immunity that is absolute.

3. The Convergence of Statutory and Common Law Liability

Finally, the standards of *Foldi* and the CSAA converge to preclude immunity for parents who knowingly facilitate abuse. A violation of the CSAA constitutes *per se* willful and wanton misconduct. The statute requires “knowing” permission or acquiescence. As the Supreme Court noted in *G.S.*, conduct is willful or wanton if it is done with the “knowledge that injury is likely to, or probably will, result.” [157 N.J. at 178]. Since the CSAA is a legislative determination that sexual abuse results in severe injury, a parent who “knowingly permits” such abuse possesses the precise knowledge of likely injury required to establish willful and wanton misconduct under the common law. Thus, whether analyzed under the “reckless indifference” standard of *Foldi* or the “knowing

permission” standard of the CSAA, a parent who allows a access to their child cannot hide behind the shield of parental immunity. The defense is legally unavailable to them.

D. THE STATUTORY RIGHT TO CONTRIBUTION AMONG JOINT TORTFEASORS

Under New Jersey law, the right of contribution is a statutory remedy designed to ensure that the burden of a judgment is shared equitably among all those responsible for a plaintiff’s injury. The Joint Tortfeasors Contribution Law (“JTCL”), N.J.S.A. 2A:53A-1 *et seq.*, provides that where injury or damage is suffered by any person as a result of the wrongful act, neglect, or default of joint tortfeasors, a right of contribution exists among them. [N.J.S.A. 2A:53A-2]. To establish a right to contribution, a moving party must demonstrate that the third-party defendant is a “joint tortfeasor.” The statute defines “joint tortfeasors” broadly as “two or more persons jointly or severally liable in tort for the same injury to person or property, whether or not judgment has been recovered against all or some of them.” [N.J.S.A. 2A:53A-1]. The New Jersey Supreme Court has clarified that the test for joint tortfeasor status is not whether the parties committed the same act, but whether their distinct acts combined to cause the same injury. In *Holloway v. State*, the Court held that defendants are joint tortfeasors if they are linked by a “common liability” to the plaintiff at the time the cause of action accrued. [125 N.J. 386, 400-02 (1991)]. This principle applies even where the defendants’ theories of liability differ. For example, a defendant liable for negligence and a defendant strictly liable under a statute are joint tortfeasors if their conduct resulted in a single, indivisible harm to the plaintiff. [See *Cartel Capital Corp. v. Fireco of N.J.*, 81 N.J. 548, 567 (1980)]. Furthermore, the allocation of this liability is governed by the Comparative Negligence Act, N.J.S.A. 2A:15-5.1 *et seq.*. Under this framework, the trier of fact must determine the percentage of negligence or fault attributable to each party. [N.J.S.A. 2A:15-5.2]. As the Supreme Court explained in *Town of Kearny v. Brandt*, strict statutory liability “does not preclude a claim for contribution,” and a jury must apportion fault between a negligent actor and a statutory violator based on the extent to which each party’s conduct contributed to the ultimate harm. [214 N.J. 76, 102-03 (2013)]. Consequently, if the Parents are found to have willfully ignored the risk

to their child, they are joint tortfeasors responsible for the indivisible psychological injury she suffered, and the Defendant is entitled to contribution for their percentage of fault.

E. COMMON LAW INDEMNIFICATION BASED ON SPECIAL RELATIONSHIPS

Distinct from contribution, which shares the burden of liability, common law indemnification is an equitable remedy that shifts the entire burden of the judgment from one defendant to another. Indemnification restores the victim to a whole by transferring the liability to the party who, in equity and good conscience, should bear it. [See *Adler's Quality Bakery, Inc. v. Gaseteria, Inc.*, 32 N.J. 55, 79-80 (1960)]. While indemnification is typically applied in cases of vicarious liability, New Jersey courts have long recognized that the remedy is not limited to contract or agency. Rather, it is available whenever a “special legal relationship” exists or where the duty owed by one tortfeasor is so absolute that their liability is “primary” while the other’s is merely “secondary.” [See *Ramos v. Browning Ferris Indus.*, 103 N.J. 177, 189 (1986)]. The touchstone of this inquiry is not the label of the tort, but the equitable focus on the “efficient cause” of the injury—the cause that necessarily set the other causes in motion. [*Promaulayko v. Amtorg Trading Corp.*, 224 N.J. Super. 391, 396 (App. Div. 1988)]. Consequently, while parental immunity protects negligent supervision, it does not immunize a parent who abrogates their primary, non-delegable duty to protect a child through “willful and wanton” misconduct. Where a parent’s reckless indifference becomes the “efficient cause” that allows a third party to harm the child, the principles of *Adler* suggest that the parent’s liability is primary. In such instances, equity permits the shifting of the full burden of the judgment to the parent whose fundamental failure to act created the danger.

LEGAL ARGUMENT

POINT I

THE THIRD-PARTY DEFENDANTS ARE LIABLE UNDER THE CHILD SEXUAL ABUSE ACT AS A MATTER OF LAW BECAUSE THE UNDISPUTED RECORD DEMONSTRATES THEY KNOWINGLY ACQUIESCED OR PERMITTED THE SEXUAL RELATIONSHIP TO SECURE FINANCIAL BENEFITS.

The New Jersey Legislature did not mince words when it enacted the Child Sexual Abuse Act (“CSAA”). It recognized that offenders often require the silence and cooperation of those closest to the victim to operate. To pierce that veil of silence, the Legislature expanded the definition of “sexual abuse” to include the conduct of a parent who “knowingly permits or acquiesces in sexual abuse by any other person.” [N.J.S.A. 2A:61B-1(a)(1)]. Under the plain text of this statute, a parent who trades their child’s safety for financial gain is not merely negligent; they are a child abuser. The Parents cannot feign ignorance, nor can they hide behind self-serving terminology. The record confirms they acted with the requisite *mens rea* under either prong of the statute. First, Parents’ conduct was unequivocally transactional. While the Parents and Mell consistently testified that these financial benefits were merely “gifts,” the law looks to the substance of the exchange, not the euphemisms used by the participants. **A bribe does not become charity simply because the recipient calls it a present.** The scale, timing, and frequency of these so-called “gifts” reveal *the Parents’* intended nature: the purchase price for access. By accepting this stream of payments and luxury benefits, Parents *knowingly* permitted the access required for the illicit activities to occur. The “gift” was the quid, and their silence was the quo. Second, even if the Court accepts the “gift” label, the liability remains. Knowing acquiescence is the conscious decision to remain silent in the face of the obvious. Accepting lavish gifts from an unrelated adult male seeking exclusive access to a child is not “generosity”—it is a glaring red flag. Parents saw the pattern and knowingly chose silence to keep the “gifts” flowing. They calculated that the financial upside outweighed the moral imperative to intervene. Whether labeled as gifts, loans, or support, the Parents’ knowledge of the source and the cost of these benefits binds them to liability.

A. The Parents Possessed Actual Knowledge of Mr. Mell’s Prior Romantic History with Their Older Daughter, Nullifying Any Claim of Ignorance Regarding His Intentions.

To establish liability under the CSAA for “knowingly” permitting or acquiescing in the conduct, the Court must first look to what the Parents knew and when they knew it. The record is clear: the Parents were not naive observers. They possessed direct, prior knowledge that Mr. Mell had previously engaged in a relationship with their older daughter, C.C., while she was in high school [SUMF ¶4]. The Parents admitted in sworn testimony that they were aware of this prior relationship as early as February 2016 [SUMF ¶6]. They acknowledged knowing the relationship was “sexual in nature” and involved “inappropriate things” [SUMF ¶7]. The situation was significant enough that the Mother, with the Father’s assent, arranged a private meeting with Mr. Mell at the Essex Hunt Club to discuss the matter [SUMF ¶9]. Furthermore, the Parents were explicitly put on notice regarding Mr. Mell’s subsequent interactions with their younger daughter, B.B. In April 2016, B.B. herself discovered explicit messages on her sister’s phone and alerted the Mother [SUMF ¶12]. More critically, in May 2016—over a year before the conduct at issue in this suit—B.B. explicitly alerted the Mother that she believed Mr. Mell was “following [her] around” in a manner she characterized as “weird” [SUMF ¶15]. Despite this granular knowledge of Mr. Mell’s history with C.C. and the direct warnings from B.B., the Parents did not distance themselves. Instead, the record shows that during the very period they should have been most vigilant, their relationship with Mr. Mell “rapidly morphed into a close friendship” [SUMF ¶18]. They cannot now claim they were unaware of the potential for a relationship to develop between Mr. Mell and B.B., as they had already lived through the exact same scenario with her older sister.

B. The Parents Systematically Monetized Their Daughter’s Relationship, Accepting Over \$75,000 in Cash and an Estimated \$125,000 in Luxury Services Including Private Aviation, Elite Club Memberships, and Sponsored Education.

The distinction between acquiescence and permission often lies in the benefit received. A parent who merely acquiesces might do so out of passive negligence; a parent who permits does so because they actively profit from the arrangement. Here, the record demonstrates that the Parents managed a “family business” where the primary asset was access to their daughters. Over an approximately 18-month period, the Parents accepted a staggering volume of cash and in-kind benefits, conservatively estimated to exceed \$200,000 in value. First, the Parents accepted \$75,000 in direct cash transfers, a sum that creates an undeniable financial tether to the relationship. Mr. Mell transferred \$25,000 directly into the Mother’s personal Chase account on July 27, 2017—a payment processed immediately following the alleged commencement of B.B.’s sexual relationship with Mr. Mell [SUMF ¶21]. He further entrenched the family financially by funding two separate brokerage accounts for the Mother and C.C. with an additional \$25,000 each [SUMF ¶22]. The Mother also benefited professionally, serving as the listing agent for Mell’s Far Hills condominium to ensure she received a split of the commission [SUMF ¶25]. Beyond these direct payments, the Parents extracted “untold tens of thousands” in luxury lifestyle enhancements that they could not otherwise afford. They treated Mr. Mell’s private aviation access as a personal concierge service, utilizing his aircraft for family excursions to Maine for college move-ins [SUMF ¶19(a)], an all-family private jet excursion for “parents’ weekend” [SUMF ¶19(b)], and an executive helicopter extraction where Mr. Mell personally flew the Mother and daughters from New York City [SUMF ¶19(d)]. This pattern of monetization extended to their social standing as well; the Parents exploited Mr. Mell’s social capital to facilitate and partially sponsor their admission into the exclusive Essex Hunt Club [SUMF ¶23] and accepted high-value gratuities, including tickets to the Zac Brown Band & Garth Brooks concerts [SUMF ¶24]. Perhaps most disturbingly, the Mother expressly permitted Mr. Mell to fund and facilitate private flying lessons for B.B., effectively outsourcing her daughter’s education to the very man she knew had an inappropriate history with her older sister [SUMF ¶26]. We anticipate the Parents will characterize these transfers as “gifts” to

evade liability. However, the timing of these payments destroys that defense. As recently clarified by the Supreme Court in *Snyder v. United States*, the distinguishing feature of a bribe versus a mere gift (or gratuity) is the existence of a *quid pro quo* agreement before or during the act. While a gratuity is a reward given after an act is completed, a bribe is a payment made concurrently to influence conduct. Here, the Parents did not receive these benefits after the relationship ended as a “thank you”; they received them in real-time, specifically while they were granting Mr. Mell the unsupervised access he required [SUMF ¶26]. The \$25,000 cash transfer on July 27, 2017—concurrent with the alleged start of the sexual relationship [SUMF ¶21]—functions not as a gift, but as a retainer. By accepting these payments while simultaneously permitting access, the Parents engaged in a transactional *quid pro quo* that constitutes “knowing permission” under the CSAA.

C. The Parents Engaged in a Systematic Campaign to Conceal the Abuse, Destroy Evidence, and Extort the Defendant, Proving Their Intent Was Financial, Not Protective.

The Parents’ culpability is not limited to their passive receipt of funds; it is cemented by their active, ruthless campaign to suppress the truth. The undisputed record reveals that the Parents operated with a singular objective: to maintain the “status quo” of the relationship and, once exposed, to monetize the fallout. This was not the conduct of confused guardians; it was the conduct of co-conspirators engaged in a cover-up. The Parents’ intent to conceal the illicit activities is first evidenced by the Mother’s reaction when she learned B.B. had discussed her flying lessons with her therapist, Dr. Robinson. Upon hearing this, the Mother’s immediate instinct was not to express relief that her daughter was opening up, but to assess the risk of exposure. In a text message in interrogation on August 18, 2017, the Mother zeroed in on the financial trail, asking B.B. pointedly, “You told him who was paying?” [SUMF ¶28]. When B.B. eventually confirmed the disclosure, the Mother expressed “surprise” that the doctor “thought it was fine” [SUMF ¶28]. This “surprise” betrays the Mother’s actual state of mind: she knew the arrangement was illicit. She knew that an objective observer—especially a medical professional—should have viewed a middle-aged man funding a teenage girl’s private aviation lessons as a red flag. Her shock that the doctor failed to

trigger mandatory reporting requirements proves she was knowingly gambling with her daughter's safety to keep the money flowing. This suppression extended to the community. In October 2017, the Parents were explicitly warned that the "lid" was coming off. A fellow parent, K.S., contacted the Mother to report that illicit messages linking B.B. to Mr. Mell had been discovered by friends [SUMF ¶31]. Armed with this knowledge—and already aware of Mr. Mell's prior sexual history with her older daughter—a protective parent would have immediately intervened. The Mother did nothing. She took no action to contact authorities or sever the relationship. This inaction was not negligence; it was maintenance. By this point, the Mother was deeply financially entangled with Mr. Mell, having accepted tens of thousands of dollars in cash and services. She ignored the warning from K.S. not because she didn't believe it, but because she couldn't afford to act on it. She chose to "keep up appearances," allowing the illicit activities to continue for another two months until a third party—an art teacher—finally forced the issue [SUMF ¶34]. When the school finally contacted the Parents on December 4, 2017, to report the abuse, the Parents did not rush to the police; they rushed to their financial advisors [SUMF ¶42]. Despite urgent requests from investigators, the Parents deliberately delayed B.B.'s forensic interview for 17 days [SUMF ¶43]. The record confirms this delay was a tactical maneuver. During this window, the Parents retained counsel to open a channel of communication with Mr. Mell, quantifying their silence at a demand of \$10 million [SUMF ¶47]. Text messages from this period explicitly acknowledge that a criminal prosecution would force Mr. Mell to "respond very quickly and more favorably" to their financial demands [SUMF ¶48]. The Parents effectively held the criminal investigation hostage, prioritizing settlement leverage over their daughter's cooperation with law enforcement [SUMF ¶49]. Finally, in an act of staggering betrayal, the Mother turned the victim - *her own daughter* - into an accomplice in her own erasure. On December 6, 2017—just two days after learning of the investigation—the Mother explicitly instructed B.B. via text to "delete Snapchat," ensuring the permanent removal of the platform used for the illicit communications [SUMF ¶50]. This instruction is the moral equivalent of a parent ordering a rape victim to burn her clothes or wash away the DNA evidence. By forcing the victim to destroy the digital record, the Mother ensured that

the “proof of everything disappears,” as B.B. herself later admitted [SUMF ¶51]. Simultaneously, the Mother enforced a strict code of silence, texting B.B. on the same day, “*Whatever you do, don’t discuss any details of your relationship with anyone*,” and explicitly instructing her to “not admit” to anything [SUMF ¶51]. These are not the actions of a mother protecting a child; they are the actions of a co-conspirator protecting the loot. By silencing the victim and destroying the evidence while simultaneously demanding \$10 million, the Parents proved that their loyalty never shifted to their child; it remained, until the bitter end, with the money.

D. The Doctrine of Parental Immunity Is Unavailable as a Matter of Law Because the Parents’ Systematic Facilitation of the Relationship Shattered the Family Unit They Now Seek to Preserve.

Mell anticipates the Parents will attempt to invoke the common law doctrine of parental immunity to shield themselves from liability. This Court should summarily reject this defense. The doctrine, established in *Foldi v. Jeffries*, rests on a single policy pillar: the preservation of family harmony. It is a shield designed to protect the “family unit” from judicial second-guessing regarding “customary child-rearing” decisions. However, New Jersey courts have long recognized that this shield disappears when the parent’s own conduct has already destroyed the very harmony the law seeks to protect. In *Small v. Rockfeld*, 66 N.J. 231 (1974), the Supreme Court rejected immunity where a father’s criminal conduct had effectively dissolved the family, noting that denying a remedy to the surviving child (who was then living with an uncle) would not “preserve” a unit that the father had already shattered. The analogy to the present case is stark and dispositive. The Parents cannot claim immunity to protect a “family unit” that they themselves dismantled for profit. By knowingly integrating a man they knew had a sexual history with their older daughter into their younger daughter’s life, the Parents did not act to preserve the family; they acted to monetize it. Their conduct—accepting over \$200,000 in benefits [SUMF ¶¶21-22] while permitting Mell unsupervised access—shattered the protective bond between parent and child just as effectively as the physical violence in *Small*. As recognized in *J.L. v. J.F.*, 317 N.J. Super. 418 (App. Div. 1999), familial abuse relies on a “culture of silence” to persist. Here, the Parents enforced that silence not

to protect the family, but to protect the revenue stream. To grant immunity here would be to rule that the law protects the “harmony” of a household where the parents are selling access to the children. That is a perversion of the doctrine. Furthermore, the Parents’ conduct falls entirely outside the scope of “simple negligence” protected by *Foldi*. The distinction is one of kind, not degree. A parent who loses sight of a child at a playground for one minute is negligent; a parent who spends 18 months actively pushing their daughter toward a known sexual risk is complicit. The Parents admitted they knew of Mell’s prior “inappropriate” relationship with their older daughter [SUMF ¶6-7]. Yet, they allowed their relationship with him to “morph into a close friendship” [SUMF ¶18], accepted his private flights [SUMF ¶19], and expressly permitted him to fund B.B.’s aviation education [SUMF ¶26]. This was not a momentary lapse in supervision; it was a sustained campaign of facilitation. The toxicity of this facilitation is nowhere more evident than in the Mother’s active interference with B.B.’s mental health treatment. B.B.’s therapy records reveal a child suffering from a “high degree of stress” specifically related to the “fam friend who also provides [B.B.] w/ free flying lessons” [Robinson Note, 9/28/17; source: 1817]. Rather than supporting her daughter’s recovery, the Mother policed it. The record shows the Mother sent text messages interrogating B.B. about her sessions, asking pointedly, “You told him who was paying?” [SUMF ¶29; source: 1192]. When B.B. confirmed the disclosure, the Mother expressed “surprise” that the doctor “thought it was fine” [SUMF ¶29; source: 1198]. The result of this maternal gaslighting was immediate; B.B. responded, “I’m so confused” [SUMF ¶29; source: 1200]. This confusion was manufactured. The Mother knowingly sacrificed her daughter’s mental clarity to protect the scheme. A parent who manipulates a traumatized child to preserve a lucrative connection is not engaged in “child-rearing”; they are engaged in psychological abuse. This misconduct rises to the level of “willful and wanton” because it violated the fundamental duty to protect established by the Supreme Court in *J.S. v. R.T.H.*, 155 N.J. 330 (1998). In *J.S.*, the Court held that even a spouse—who enjoys no special authority over a neighbor’s child—has a legal duty to warn if she possesses “particularized knowledge” of her husband’s predatory tendencies. Here, the Parents possessed knowledge far superior to the wife in *J.S.*, yet they chose silence to preserve their social standing.

The record demonstrates that after discovering Mell’s illicit relationship of C.C., the Parents did not sever ties or alert his family. Instead, they made the calculated decision to socialize with the Mells, using the his social capital to gain entry into the Essex Hunt Club [SUMF ¶23]. By pretending Mell was a respectable friend, they gaslit the entire community—including Mell’s own wife, Kimberly Ruggles Mell¹—preventing anyone from intervening. A parent who ignores a friend’s blatant history of illicit sexual activity so they can continue to enjoy private flights and country club access is acting with a “reckless indifference”² that obliterates any claim to immunity. Finally, the Parents’ post-discovery conduct confirms that their priority was never the “family unit,” but the “family business.” Immunity applies only to acts of child-rearing, not business negotiations or obstruction of justice. A parent concerned with family preservation does not instruct a victim to “delete Snapchat” to ensure the “proof of everything disappears” [SUMF ¶50-51]. A parent concerned with their child’s welfare does not delay a police interview for 17 days to leverage the situation for a \$10 million settlement [SUMF ¶47, 49]. These are the actions of business managers closing a deal, not parents raising a child. Because the Parents’ conduct was willful, wanton, and fundamentally commercial, the doctrine of parental immunity is legally unavailable to them.

Conclusion to Point I

The Court should have no qualm about calling these Third-Party Defendants what they really are: ***child abusers***. Plain and simple. The New Jersey Legislature did not create the Child Sexual Abuse Act to police the margins; it created the Act to capture exactly this type of betrayal. The statute demands that these child abusers answer on the same exact footing as the person who engaged in the illicit sexual activity that brings everyone before the Court today. The Parents attempts to sanitize their conduct is beloved by the record. They admit they possessed the “particularized knowledge” of the Defendant’s sexual history with their eldest daughter 500 days before the sexual

¹To be absolutely clear, Ms. Ruggles Mell (and her children) had no knowledge and had no reason to believe that Mr. Mell was engaged in any illicit relationships at all and it bears mentioning that, despite her impermissible shotgun pleading to the contrary, B.B. has adduced ***no*** evidence whatsoever to even suggest that she or her children knew anything.

²To be sure, this type of conduct shocks the conscience so greatly that it could be framed as “deliberate indifference”; a much higher standard in law.

relationship with B.B. began [SUMF ¶6, 20]. Yet, rather than using that 500-day window to build a wall of protection, they used it to build a revenue stream. They actively facilitated access in exchange for over \$75,000 in cash and access to private jets that cost tens of thousands of dollars per flight [SUMF ¶19, 21, 22]. To grant immunity here would be to validate a market decision to trade a child's safety for a country club lifestyle. The Parents are not victims of deception; they are the beneficiaries of the illicit relationship they cultivated, ratified, and tried to hide. Because they knowingly permitted the conduct that destroyed their daughter's emotional well-being, they are liable as child abusers under N.J.S.A. 2A:61B-1(a)(1) as a matter of law, and Summary Judgment must be entered against them.

POINT II
THE COURT MUST GRANT SUMMARY JUDGMENT ON CONTRIBUTION
BECAUSE THE THIRD-PARTY DEFENDANTS ARE JOINT TORTFEASORS AS A
MATTER OF LAW. SINCE MR. MELL'S LIABILITY HAS ALREADY BEEN
ESTABLISHED, THE PARENTS MUST BE COMPELLED TO SHARE THE BURDEN
OF THE DAMAGES THEY SOLD ACCESS TO.

The Court has already granted partial summary judgment against Mr. Mell regarding liability. He stands ready to face a jury for the assessment of damages. However, the question now before this Court is not whether Mr. Mell is liable—that ship has sailed—but whether he must stand alone in this wreckage or with the other adults unequivocally involved: the Parents. The Third-Party Defendants, D.D. and E.E. (“Parents”), are attempting to pull off the ultimate heist: they traded their daughter's safety for cash and luxury perks, and now they seek to sprint out the back door while Mr. Mell is left paying the check. The Joint Tortfeasors Contribution Law (“JTCL”), N.J.S.A. 2A:53A-1 *et seq.*, exists to prevent exactly this kind of grotesque inequity. Under New Jersey law, the Parents are joint tortfeasors because their willful misconduct and statutory acquiescence combined with Mr. Mell's actions to cause a single, indivisible injury to B.B. The Parents provided the access, the cover, and the silence required for the harm to occur. Without their contribution to the judgment, the upcoming damages trial will result in an unjust windfall for the very people who monetized the access.

A. The Parents Were the “Gatekeepers” During a 500-Day Window When B.B. Was Safe; Instead of Keeping Her That Way, They Pushed Her Directly Into the Defendant’s Path.

To understand the depth of the Parents’ liability as joint tortfeasors, one must look at the specific timeline of their betrayal. The Parents admit they knew Mr. Mell had engaged in an illicit, sexual relationship with their older daughter, C.C., as early as February 2016 [SUMF ¶4, 6]. B.B. testified that her sexual relationship with Mr. Mell did not begin until mid-June 2017 [SUMF ¶20]. That creates a window of approximately 500 days. During these 500 days, there was no sexual history between Mr. Mell and B.B. She was safe. The Parents possessed the absolute power to keep her safe. They had the roadmap of exactly what Mr. Mell had done, thanks to their older daughter. A *reasonable parent* would have used Day 1 of those 500 days to sever all ties, contact the police, and warn Mr. Mell’s wife. Instead, the Parents spent those 500 days aggressively pushing B.B. closer to the very man they knew had compromised her sister. They did not shield her; they served her up:

- **May 2016 (*The Warning Ignored*):** Just three months after learning of the C.C. affair, the Parents attended a pre-prom party with Mr. Mell. When B.B. approached her Mother at that party to explicitly warn that Mr. Mell was “following [her] around” and “stalking” her, the Parents did not evacuate their child. They dismissed her fears and continued to socialize with the man she identified as a stalker [SUMF ¶15, 16].
- **Fall 2016 (*The Travel*):** While B.B. was still untouched, the Parents accepted private flights on Mr. Mell’s aircraft for family trips to Maine and Colby College [SUMF ¶19(a)-(b)]. They actively placed B.B. in the confined space of a private aircraft with the man involved with her sister because the luxury travel was more important than the risk.
- **Spring 2017 (*The Setup*):** In the months leading up to the sexual relationship with B.B., the Parents permitted Mr. Mell to fund and facilitate private flying lessons for B.B. [SUMF ¶26]. They even allowed B.B. to sit alone with him in the cockpit [SUMF ¶19(e)]. They did not just allow this; they facilitated it.

For 500 days, the Parents effectively groomed their own daughter on Mr. Mell’s behalf. They normalized his presence. They accepted his money. They silenced their daughter’s instincts. The injury that finally occurred in June 2017 was not an accident; it was the inevitable result of the

Parents’ 16-month campaign to integrate a known risk into their daughter’s life. Because they used that safety window to push B.B. into danger rather than pull her back, they are joint tortfeasors liable for the result.

B. The Parents Actively Monetized the Risk, Creating a Direct Financial Nexus to the Harm.

This was not passive negligence; it was active commerce. The Parents are joint tortfeasors because they entered into a *de facto* partnership with Mr. Mell: he provided the funds, and they provided the access and secrecy. The timeline of payments is damning and creates an unbreakable link of causation. On July 27, 2017—immediately proximate to the time B.B. alleges the sexual relationship began—Mr. Mell transferred \$25,000 directly into the Mother’s personal Chase account [SUMF ¶21]. This was not a coincidence; it was a retainer. The Parents accepted this cash, along with another \$50,000 in brokerage account funding [SUMF ¶22] and untold value in private jet flights [SUMF ¶19], while simultaneously allowing Mr. Mell unsupervised access to B.B. By accepting these payments, the Parents became shareholders in the enterprise that harmed their daughter. To allow them to keep the profits (\$75,000+ in cash and perks) while Mr. Mell pays 100% of the damages is repugnant to every principle of equity. The JTCL mandates that they contribute their share of the “overhead” for the tragedy they helped manufacture.

C. The Parents’ Obstruction of Justice Exacerbated the Harm, Solidifying Their Status as Joint Tortfeasors.

Finally, the Parents are liable for contribution because their post-discovery conduct—specifically the obstruction of the investigation—directly contributed to the damages Mr. Mell is now facing. When the “official” investigation began in December 2017, the Parents did not rush to protect B.B.; they rushed to protect the settlement value. They delayed B.B.’s police interview for 17 days [SUMF ¶43]. During that delay, they retained counsel to demand \$10 million from Mr. Mell [SUMF ¶47]. Crucially, the Mother actively spoliated evidence that is central to the damages case. On December 6, 2017, she ordered B.B. to “delete Snapchat” [SUMF ¶50], ensuring that the “proof

of everything disappears” [SUMF ¶51]. She simultaneously ordered B.B. to “not admit” anything [SUMF ¶52]. This conduct deprived the defense—and the Court—of the digital record that would have contextualized the relationship. By destroying evidence to leverage a payout, the Parents became active participants in the legal harm. They cannot now claim to be innocent bystanders.

Conclusion to Point II

Mr. Mell has been found liable. He accepts that he faces a damages trial. But the law of New Jersey refuses to let the Parents—who knew of the risk [SUMF ¶17], ignored the warnings [SUMF ¶16], took the money [SUMF ¶21], and destroyed the evidence [SUMF ¶50]—watch that trial from the gallery. They belong at the defense table. They are joint tortfeasors. They are liable for contribution. Summary Judgment on this point is mandatory to ensure the jury can properly apportion fault among all the architects of this tragedy.

POINT III

THE COURT MUST GRANT SUMMARY JUDGMENT ON INDEMNIFICATION BECAUSE THE PARENTS’ ACTIVE MONETIZATION OF THEIR DAUGHTER WAS THE “EFFICIENT CAUSE” OF THE INJURY. EQUITY DEMANDS THEY BEAR THE FULL BURDEN OF THE DAMAGES THEY ENGINEERED.

While contribution seeks to share the burden, common law indemnification seeks to place it where it squarely belongs. Under New Jersey law, indemnification is an equitable remedy available to shift the entire loss to the party who, in “equity and good conscience,” should bear it. [See *Adler’s Quality Bakery, Inc. v. Gaseteria, Inc.*, 32 N.J. 55, 79-80 (1960)]. It applies when one party’s negligence is “secondary” or “passive,” while the other’s is “primary” or “active,” or where a special relationship dictates that one party was the “efficient cause” of the harm. [*Promaulayko v. Amtorg Trading Corp.*, 224 N.J. Super. 391, 396 (App. Div. 1988)]. In this case, the Parents are the primary tortfeasors. While the Defendant engaged in the relationship, it was the Parents who built the marketplace in which that relationship could exist. They held the absolute, non-delegable duty *in loco parentis* to protect B.B. from known dangers. By willfully abdicating that duty to secure a revenue stream exceeding \$200,000, they committed the original sin of this case. Without

their 500-day campaign of facilitation, the injury would have been impossible.

A. The Parents’ Duty to Protect Was Absolute and Non-Delegable; Their Willful Breach Constitutes the “Primary” Cause of the Harm.

The law imposes no higher duty than that of a parent to a child. It is a duty that supersedes all others. When the Parents discovered the Defendant’s history with their older daughter in February 2016 [SUMF ¶6], that duty required immediate, scorching intervention. Instead, the Parents made a calculated decision to subordinate their primary duty to their financial ambition. They became the “efficient cause” of the injury because they removed the natural barriers that protect a child: They removed the barrier of supervision by allowing B.B. to fly alone with the Defendant [SUMF ¶19(e)]. They removed the barrier of distrust by socializing with him after B.B. reported being “stalked” [SUMF ¶15, 16]. They forced their daughter to make choices between her own mental health and their protection, interrogating her about her confidential therapy sessions to ensure she hadn’t revealed “who was paying” for the lessons [SUMF ¶28, 29]. They removed the barrier of accountability by concealing the truth from the Defendant’s wife and the authorities for nearly two years [SUMF ¶17]. In the equitable calculus of fault, the party who holds the keys to the gate and sells entry is more culpable than the one who walks through. The Parents possessed the exclusive authority to stop this relationship at any second during those 500 days. They chose not to. Because their authority was absolute, their liability is primary.

B. Unjust Enrichment Principles Demand Indemnification to Prevent the Parents from Profiting from Their Own Abuse.

Indemnification is fundamentally a tool to prevent unjust enrichment. To deny indemnification here would be to allow the Parents to retain the “fruits” of their child abuse while shifting the cost to the Defendant. The record demonstrates that the Parents extracted a compensation package conservatively estimated at over \$200,000:

- **Direct Cash:** The Parents received \$25,000 in a direct wire to the Mother’s personal account [SUMF ¶21] and a prior creation of an elite brokerage account funded with \$50,000 [SUMF ¶22], for a total of \$75,000 in liquid cash access.
- **Private Aviation:** The Parents treated the aviation access available to the Defendant as a personal “concierge service.” They utilized aircraft owned by various entities—to which the Defendant merely had access—for college move-ins to Maine [SUMF ¶19(a)], “parents’ weekend” excursions [SUMF ¶19(b)], and helicopter extractions from New York City [SUMF ¶19(d)]. At standard charter rates of thousands of dollars per hour, the value of utilizing these third-party assets easily pushes the total benefit into the six figures.
- **Lifestyle Perks:** They accepted sponsorship into the exclusive Essex Hunt Club [SUMF ¶23], box seats for sold-out concerts [SUMF ¶24], and real estate commissions [SUMF ¶25].

This was a commercial transaction. The Parents sold access to their daughter for a sum exceeding \$200,000. If they are merely liable for contribution, they are effectively allowed to keep their profit margin. Equity does not tolerate such a result. A parent cannot sell access to their child and then claim “victim” status when the buyer utilizes that access. The damages B.B. suffered are the direct overhead of the Parents’ business enterprise. As the beneficiaries of the scheme, the Parents must indemnify the Defendant for the liability they sold him.

Conclusion on Point III

The Third-Party Defendants are not mere bystanders; they are the architects of destruction. They took a safe, protected child and—over the course of 500 days—systematically dismantled her defenses to curry favor with a wealthy patron. They deleted the evidence [SUMF ¶50]. They silenced the victim [SUMF ¶52]. They cashed the checks [SUMF ¶21]. To hold the Defendant solely liable while the Parents count their money would be a miscarriage of justice. This Court must exercise its equitable powers to grant Summary Judgment on indemnification, shifting the burden to the “efficient cause” of the injury: the Parents who valued their lifestyle more than their daughter’s life.

CONCLUSION

A parent is supposed to be nature's firewall. They are the biological and moral shield standing between a vulnerable child and the complex dangers of the adult world. But the record before this Court reveals that D.D. and E.E. were not a shield; they were a turnstile. And not only did they leave the gate wide open, they charged admission. The incredulity one feels when reviewing this record is matched only by the clarity of the timeline. For roughly 500 days—from the moment they learned of Mell's history with their eldest daughter to the moment the nightmare for their middle daughter began—these Parents held the power of a god in their hands. They could have done any number of things to stop this. A simple phone call to the police in February 2016 would have ended it. Simply telling Mell's wife, Kimberly Ruggles Mell, would have ended it all. Refusing the \$25,000 check that arrived in their bank account the very month their daughter's sexual relationship began would have ended it. They did none of these things. Instead, nothing captures the grotesque banality of their betrayal quite like the handwritten note from October 20, 2016. In that letter, the Parents thanked Mell for flying them on a private jet to Colby College for "parents weekend". They did not write to warn him to stay away from their children. Instead, they wrote to express their gratitude for the flight because they "can't imagine how exhausting driving would have been". The Court should let that admission sink in. To these Parents, the prospect of sitting in traffic on I-95 was "exhausting". Yet, the moral weight of handing their daughter over to a man they knew had en-

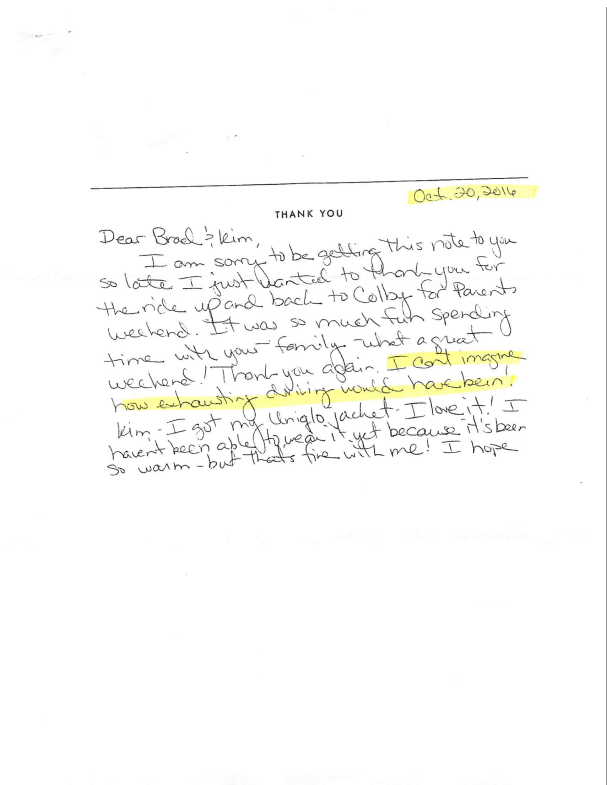


Figure 4: Note from Parents thanking Defendant
for private flight

gaged in an illicit sexual relationship with her sister was perfectly bearable. They were willing to trade their child's safety to save themselves a car ride. They looked at the red flags waving in their faces—and they chose to look at the luxury leather seats of a Gulfstream private jet instead. Under the Child Sexual Abuse Act, this is not merely bad parenting; it is abuse. Perhaps the final insult is the caption of this very brief. These Parents have been permitted to proceed as “D.D.” and “E.E.,” hiding behind the veil of anonymity under the pretense that identifying them would harm their daughter. That is a lie. The record demonstrates that they have never prioritized their daughter's well-being over their own interests. They are not hiding their names to protect B.B.; they are using B.B. as a shield to protect themselves from the public shame they so richly deserve. It is these Third-Party Defendants who are driving this litigation, dragging their daughter through the mud of discovery not to help her heal, but to secure a final payday. They sold her safety then for the convenience of a flight, and they are selling her trauma now for a settlement check. Finally, this Motion asks a fundamental question about justice. Since Day 1, Mell is the only adult in this tragedy who has accepted responsibility. He promptly pleaded guilty to federal felonies. He served seven years in federal prison. He is currently serving a term of strict federal supervised release. He has lost his marriage, his reputation, and has been metaphorically dragged through the mud by his ears. Through it all, he has accepted the weight of his own actions. But he draws the line here. He refuses to be the only party held liable in a civil capacity to B.B. when her own parents sold the access that made the injury possible. Justice requires that the ledger be balanced. The Parents owe their daughter a significant share of the damages for their betrayal, and a jury deserves the right to decide exactly how large that share is. WHEREFORE, Third-Party Plaintiff Steven Bradley Mell respectfully requests that this Court enter an Order granting Summary Judgment against Third-Party Defendants D.D. and E.E. regarding liability for contribution, indemnification, and violations of the Child Sexual Abuse Act, and setting this matter down for a trial on damages and allocation of fault.

Respectfully Submitted,

S. Bradley Mell
Defendant & Third Party Plaintiff *Pro Se*

Tab C-9

Whalen Verification — Nagel Committed Extortion